

24NNCV00104 24NNCV00104

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 24NNCV00104 Hearing Date: July 17, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-on

Date: July 17, 2026

Case No: 24NNCV00104 Trial Date: Not yet set

Case Name: T's and Sons, LLC v. Krajeski, et al.

MOTION TO BE RELIEVED AS COUNSEL

[CCP § 284]

Moving Party: David M. Syme, Esq., Counsel for Plaintiff, T's and Sons, LLC

Responding Party: Plaintiff, T's and Sons, LLC [Unopposed]

RELIEF REQUESTED:

Leave for counsel to be relieved as Plaintiff's attorney of record in this action.

CAUSES OF ACTION: from Complaint

1) Breach of Contract

2) Specific Performance

3) Intentional Interference with Contractual Relations

4) Intent to Hinder, Delay, or Defraud

5) Constructive Fraudulent Transfer

SUMMARY OF FACTS:

On July 25, 2023, T's and Sons, LLC ("Plaintiff") and defendant Jan Krajewski ("Krajewski") entered into a Purchase and Sale Agreement for real property located at 309 Oaklawn Avenue, South Pasadena, CA. Plaintiff alleges that defendant Oregon Limitless, Inc. ("Oregon Limitless") is the current titleholder of the subject property. The Complaint alleges that Krajewski breached the agreement by failing to perform its obligations to provide a clear and insurable title to the Property, failing to perform its obligations to provide disclosures, and failing to close the escrow and complete the purchase and sale. Plaintiff alleges that Krajewski transferred the property to Oregon Limitless on February 8, 2024, by way of a quitclaim deed while the property was still under contract with Plaintiff.

ANALYSIS:

"[T]he attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) upon the consent of both client and attorney...; (2) upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (CCP § 284; California Rules of Court, rule 3.1362.) The withdrawal request may be denied if it would cause an injustice or undue delay in proceeding; but the court's discretion in this area is one to be exercised reasonably. (Mandell v. Superior (1977) 67 Cal.App.3d 1, 4; Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

In making a motion to be relieved as counsel, the attorney must comply with procedures set forth in CRC, rule 3.1362. The motion must be made using mandatory forms:

1.

1. Notice of Motion and Motion to be Relieved as Counsel directed to the client (MC-051);

2. Declaration "stating in general terms and without compromising the confidentiality of the attorney-client relationship" the reasons that the motion was brought (MC-052); and

3. Proposed Order (MC-053).

2.

The forms must be timely filed and served on all parties who have appeared in the case. (CRC rule 3.1362.) If these documents are served on the client by mail, there must be a declaration stating either that the address where the client was served is their "current residence or business address" or "the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (CRC rule 3.1362 subd. (d)(1).)

The court has discretion on whether to allow an attorney to withdraw, and a motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) Withdrawal is generally permitted unless there is a compelling reason to continue the representation. (Heple v. Kluge (1951) 104 Cal.App.2d 461, 462.)

Counsel filed a Notice of Motion and Motion (MC-051), Declaration in Support of Motion (MC-052) and Proposed Order (MC-053). As reason for the Motion, Counsel states: "We cannot continue to represent Clients. We have served Client via Email a Voluntary Substitution of Attorney form, but they have not responded." (MC-052, ¶ 2.) The forms were served via mail on the client and electronically served on all other parties who have appeared in this matter on June 22, 2026. (POS.) Counsel confirmed via email in the last 30 days that the client's address is current. (MC-052, ¶ 3(b)(1)(d).)

Finally, there is no showing that withdrawal would cause injustice or undue delay in the proceedings as trial in this action is not yet set. Although Plaintiff is a corporation and thus cannot represent itself in this case, there is sufficient time before trial for Plaintiff to obtain new counsel. Thus, the Court finds that the motion sets forth an adequate basis for withdrawal.

The motion is GRANTED.

RULING:

Counsel David M. Syme, Esq.'s Motion to be Relieved as Counsel is GRANTED.

Counsel will be relieved effective upon the e-filing of the proof of service of the signed order upon the client.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.